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CASE #	CASE NAME	HEARING NAME
CVRI2400078	ALMAZAN vs W.A RASIC CONSTRUCTION COMPANY, INC.	DEMURRER ON CROSS- COMPLAINT

Tentative Ruling:

Cross-Defendants Quanta Utility Engineering Services, et al.'s Demurrer as to the 4th cause of action for Breach of Contract is overruled; as to Defendant Quanta Utility Engineering Services' Demurrer to the 1st, 2nd, 3rd, and 5th causes of action, it is overruled; as to defendants Quanta Services, Inc. and Utility Line Management's Demurrer to the 1st, 2nd, 3rd, and 5th causes of action, it is sustained.

Order to Show Cause is set for 11/19/26, why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL cross-defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFFS AND REY S YANG.

REQUEST FOR JUDICIAL NOTICE (RJN)

The Court denies RJN of Exhibit 1 (Sacramento County Citizen Access Fictitious Business Search). Materials prepared by private parties that are on file with governmental agencies are not official records of which judicial notice may be taken. (*People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 608.) If a document was filed by the governmental agency itself, then Evidence Code section 452, subdivision (c), applies and judicial notice can then be granted.

Exhibit 2 is the Compromise and Release form (or the settlement contract) paying out Plaintiff in Worker's Compensation case number ADJ17384473. The date of injury is December 9, 2022, which is the same date alleged as Plaintiff's injury date in the Complaint and Cross Complaints. However, the listed employer is "Quanta International Utility Line Management," which is not a named party in the Cross Complaint. There is no evidence or foundation that ties Quanta International Utility Line Management to any of the named Cross Defendants in the Cross Complaint. Cross Defendants rely on Evidence Code section 452, subdivision (c) as the basis of judicial notice, arguing the document is an official act of the Los Angeles County Recorder's Office. However, like Exhibit 1, this release form is prepared by private parties and filed with a government agency such that it is not an official record of which judicial notice may be given. (*People v. Thacker, supra*, 175 Cal.App.3d at 598-599; *Stevens, supra*, 75 Cal.App.4th at 608.) Cross Defendants' reliance on *Satchmed Plaza Owners Assn v. UWMC Hospital Corp.* (2008) 167 Cal.App.4th 1034, 1040-1041 and *McElroy v. Chase Manhattan Mortg. Corp.* (2005) 134 Cal.App.4th 388, 394 are misplaced as these cases address judicial notice of recorded deeds, not a release.

Accordingly, Exhibit 3, the Order relating to the workers compensation case, is irrelevant.

On September 8, 2026, Cross Defendants filed another supplemental RJN for Exhibit 4, titled "Fictitious Business Name Statement" by ULMS. However, this document is also one that is prepared by a private party and filed with a government agency such that it is not an official record that the Court can take judicial notice of. (*People v. Thacker*, *supra*, 175 Cal.App.3d at 598-599; *Stevens supra*, 75 Cal.App.4th at 608.)

DEMURRER

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) Demurrers for failure to state a cause of action are commonly referred to as "general" demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as "special demurrers." (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

1ST (INDEMNITY) AND 5TH (EXPRESS INDEMNITY) CAUSES OF ACTION

Indemnity means "the obligation resting on one party to make good a loss or damage another party has incurred." (*Rossmore Sanitation, Inc. v. Pylon, Inc.* 91975) 13 Cal.3d 622, 628.) "An indemnitor is the party who is obligated to pay another." (*Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864.) "An indemnitee is the party who is entitled to receive the payment from the indemnitor." (*Id.*) "An indemnity obligation arises from two general sources." (*Id.*) First, it may arise from "express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances." (*E.L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 506 ("E.L. White").)

Second, indemnity may also arise based on equitable considerations. (*E.L. White, supra*, 21 Cal.3d at 507.) "Unlike contractual indemnity which looks to the parties' intent, equitable indemnification focuses on principles of fairness and justice and is designed to apportion loss among tortfeasors in proportion to their relative culpability[.]" (*Maryland Casualty, supra*, 35 Cal.App.4th at 864.) A condition of equitable indemnity is that there must be some basis for tort liability against the proposed indemnitor, usually involving breach of a duty owed to the underlying plaintiff. (*Stonegate Homeowners Ass'n. v. Staben* (2006) 144 Cal.App.4th 740, 751.) "The doctrine applies only among defendants who are jointly and severally liable to the plaintiff." (*BFBG Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852.)

"Equitable indemnity 'applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.'" (*United Services Auto. Ass'n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) "Equitable indemnity principles govern the allocation of loss or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be born by each joint tortfeasor 'in direct proportion to [its] respective fault.'"

(*Expressions at Rancho Niguel Assn. v. Ahamnson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 597-598.)

Here, because RJN for Exhibits 1-4 have been denied, analysis on the merits of the demurrer will be based solely on the Cross Complaint. Any arguments relying on allegations or documents outside of the operative pleading will not be considered as they are extrinsic evidence. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman's Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not part of any court record.]

The Cross Complaint alleges Plaintiff was employed by ULMS when he was injured at the Project site. (XComplt., Preliminary Allegations, ¶3.) Plaintiff filed suit against SCE and WARC for the Government Claims Act and Negligence. (*Id.* at ¶2.) SCE filed a Cross Complaint against WARC wherein the Court granted SCE's Motion for Summary Adjudication as to the issue of WARC's duty to defend SCE. (*Id.* at ¶¶4-6.) Plaintiff and SCE later reached a settlement. (*Id.* at ¶7.) During litigation, SCE produced a master services agreement and sub-agreement between SCE and QUES. (*Id.* at ¶8.) Under the sub-agreement, QUES performed construction project management services and retained ULMS as a subcontractor to perform and oversee work at the Project site. (*Id.* at ¶¶8-9.) Under the master services agreement, QUES was obligated to maintain workers' compensation insurance and indemnify SCE. (*Id.* at ¶11.) WARC alleges its liability to SCE is based solely upon a derivative form of liability, not from WARC's own conduct, to which it is entitled to complete indemnity from Cross-Defendants. (*Id.* at First Cause of Action ["COA"], ¶3.) Taking the foregoing allegations as true for purposes of demurrer, the Cross Complaint states a claim for indemnity.

Workers Compensation Act ("WCA")

The Worker's Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Worker's Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee's injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee's commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Lab. Code § 3600, subd. (a).) The general rule is that Workers' Compensation is, "the sole and exclusive remedy of the employee or his or her dependents against the employer" for work-related injuries. (Lab. Code § 3602, subd. (a); *Rymer v. Hagler* (1989) 211 Cal.App.3d 1171, 1177.)

Cross Defendants assert PAR is Plaintiff's actual employer, which operates under the fictitious names of QUES and ULMS, such that any indemnity claim against ULMS and QUES is barred by the WCA pursuant to Labor Code section 3864, citing *E.B. Wills Co. v. Superior Court* (1976) 56 Cal.App.3d 650 ("*EB Wills*").

In opposition, WARC points out the judicially noticed documents do not establish that QUES is Plaintiff's employer. WARC argues Labor Code section 3864 does not require dismissal because it only applies to the employer.

Labor Code section 3864 states:

If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement to do so executed prior to the injury.

The chapter that this code section falls within pertains to workers compensation.

Section 3864 "enforces the exclusivity of workers' compensation by precluding concurrent tortfeasors from seeking indemnification from negligent employers" absent a written agreement executed prior to the injury ...Prior to the statute's enactment in 1959, the employer was potentially liable not only for the injured employee's workers' compensation benefits, but also for additional damages awarded to the employee at common law. [Citation.] ""The California legislature felt that this double burden placed upon the employer was in contravention of the exclusive remedy theory of the workmen's compensation statutes", and therefore enacted... [Section] 3864 [Deering's] to abolish any right to indemnity other than by express contract.

(*Employers Mut. Liab. Ins. Co. v. Tutor-Saliba Corp.* (1998) 17 Cal.4th 632, 638 [63 Cal.Comp. Cases 132, 135.]) In *Ralph M. Parsons Co. v. Combustion Equipment Associates, Inc.* (1985) 172 Cal.App.3d 211, 216, f.2, the Court stated due to Labor Code section 3864, "no cause of action may be maintained against the employer for implied or equitable indemnity or contribution, but only on the basis of an express indemnity agreement. Otherwise, the employer's limited liability under workers' compensation law would be largely illusory."

Labor Code section 3864 is not limited to indemnity claims and is applicable to other causes of action, such as breach of contract, breach of warranties, fraud, negligent misrepresentation, and equitable estoppel, where the aim is to impose liability against an employer for the liability that it is exempted from under Labor Code section 3864. (*Alameda Tank Co. v. Starkist Foods, Inc.* (1980) 103 Cal.App.3d 428, 433.)

In *EB Wills, supra*, 56 Cal.App.3d 650, an employee brought a negligence suit against defendant third parties for work related injuries. The defendant cross complained against the corporate employer for contribution. (*Ibid.*) The Court of Appeal commanded the trial court to sustain the employer's demurrer and held that under Labor Code section 3864, "the employer of an employee who is injured as the result of the joint negligence of the employer and a third party is no longer required to indemnify the third party in the absence of an indemnification agreement." (*Id.* at 654.) "By insulating an

employer against liability under the equitable doctrine of implied indemnity, section 3864 fully embraces the ‘exclusive remedy’ concept visualized by the workers’ compensation law of [California].” (*Id.* at 654-655.)

In the present case, WARC seeks indemnification against QUES, QSI, and ULMS for Plaintiff’s injuries. (XComplt., First COA, ¶¶1-3.) Because the Cross Complaint only alleges ULMS as Plaintiff’s employer (*Id.* at Preliminary Allegations, ¶3), and there is no indemnification agreement between ULMS and WARC, applying *EB Wills* and Labor Code section 3864, the indemnity claim against ULMS fails. Thus, the demurrer as to ULMS is sustained, but the demurrer as to QUES is overruled.

Piercing the Corporate Veil

As to QSI, Cross Defendants points out there is no basis to impose liability on QSI as the parent corporation to QUES.

Under California law, a corporation is ordinarily treated as a distinct legal entity, separate from its shareholders, officers, and directors, with its own rights and obligations. (*Sonora Diamond Corp. v. Sup. Ct.* (2000) 83 Cal.App.4th 523, 538.) However, this corporate separateness may be disregarded under the doctrine of “piercing the corporate veil” when the corporation is used to commit fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose. In such cases, courts may treat the acts of the corporation as those of the individuals or entities actually controlling it, typically its equitable owners (*Id.*) Importantly, conclusory or boilerplate allegations are not sufficient to support veil piercing. Specific factual allegations are required to show both unity of interest and an inequitable result. (*Cork v. CC-Palo Alto, Inc.* (N.D. Cal. 2021) 534 F.Supp.3d 1156, 1191; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.) For example, merely alleging that a person owns all the stock of a corporation and makes all management decisions is not enough to disregard the corporate form. (*Leek, supra*, 194 Cal.App.4th at 415.) Here, the Cross Complaint solely alleges “QUES is a subsidiary of QSI.” (XComplt., Preliminary Allegations, ¶10.)

2ND CAUSE OF ACTION – CONTRIBUTION (APPORTIONMENT OF FAULT)

Civil Code section 1431.2 states, “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against that defendant for that amount.” (Civ. Code, § 1431.2, subd. (a).)

The comparative fault doctrine “is a flexible, commonsense concept, under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury (whether their responsibility for the injury rests on negligence, strict, liability, or other theories of responsibility), in order to arrive at an ‘equitable apportionment or allocation of loss.’” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314.) It apportions liability in direct proportion to fault in all cases. (*Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 827.)

For the same reason set forth under the indemnity claim, the Court sustains the demurrer as to ULMS and QSI and overruled the demurrer as to QUES.

3RD CAUSE OF ACTION - DECLARATORY RELIEF

Declaratory relief is authorized pursuant to Code of Civil Procedure sections 1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (Code Civ. Proc., § 1060.) Declaratory relief has two elements a party must satisfy: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party’s] rights or obligations.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Id.*) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (*Safeway Stores, Inc. v. Royal Indem. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060’s language ‘appears to allow for an extremely broad scope of an action for declaratory relief’...In the context of a demurrer, the court will evaluate ‘whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties...Section 1060 must be read together with section 1061.’” (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal.App.4th 484, 489.) Code of Civil Procedure section 1061 provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

Here, the Cross Complaint repackages the same indemnity and contribution theories set forth under the first two causes of action. For the same reason set forth under the first two causes of action, the Court sustains the demurrer as to ULMS and QSI and overruled the demurrer as to QUES.

4TH CAUSE OF ACTION: BREACH OF CONTRACT

The elements for a breach of contract claim are: (1) contract; (2) plaintiff’s performance; (3) breach; and (4) damages. (*Marina Pacific Hotel and Suites, LLC v. Fireman’s Fund Insurance Company* (2022) 81 Cal.App.5th 96, 108.) A breach of contract claim necessarily begins with a contract. (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1352.

Cross Defendants assert the Cross Complaint does not attach the alleged master services agreement evincing that WARC is a third-party beneficiary to the master services agreement. They argue that even accepting the allegations, the indemnity obligation under the master services agreement runs from QUES to SCE, not to WARC. Conversely, WARC argues it pled the existence of the contract, relevant indemnity

obligations, and resulting exposure to SCE. It asks for leave to amend should the Court require greater specificity.

In a breach of contract cause of action, the plaintiff must attach the contract, plead its terms in verbatim, or plead its legal effect. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2022) 29 Cal.4th 189, 198-1999; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) A complaint is demurrable if, “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10, subd. (g).)

Here, the operative pleading alleges the existence of a master services agreement and sub-agreement between SCE and QUES, to which WARC is not a party but is a third-party beneficiary. (XComplt., Preliminary Allegations ¶¶8, 11; Fourth COA ¶¶10-12.) This is sufficient for purposes of demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN vs EQUITY LIFESTYLE PROPERTIES, INC.	MOTION TO DETERMINE DISCOVERY DEADLINES, TIMELINESS OF DISCOVERY RESPONSES, AND LEGAL CONSEQUENCES

Tentative Ruling:

Plaintiff's Motion to Determine Discovery Deadlines is denied.

The Plaintiff's Motion for an Order Determining Discovery Deadlines, Timeliness of Defendants' Discovery Responses, and Legal Consequences is fundamentally flawed and lacks any basis in the California Civil Discovery Act. Plaintiff presents the question of whether the April 20, 2026, attempted Anti-SLAPP filing triggered a stay under Code of Civil Procedure section 425.16(g) and whether the June 22, 2026, responses were timely. In the Court's June 10, 2026 ruling, it explicitly identified the resubmitted motion filed on May 21, 2026, as the operative filing; and ignores the clear mathematical extension of deadlines provided by Code of Civil Procedure section 12a.

The strategic integrity of California litigation relies upon strict adherence to the California Civil Discovery Act (Code of Civil Procedure sections 2016.010–2036.050). It is imperative that the Court declines to issue advisory opinions on discovery matters that the Legislature intended to be "self-executing." By refusing to provide standalone determinations on timing, the Court prevents the discovery process from regressing into the "sporting theory of litigation" condemned in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355.

Plaintiff's current motion essentially seeks a re-litigation of these settled procedural facts under the guise of discovery management. While Plaintiff appears "In Pro Per," she is